



SPONSOR: Rep. Harris & Sen. Poore
Rep. Chukwuocha

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 106

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO THE SCOPE OF PRACTICE OF
LICENSED OCCUPATIONAL THERAPY PRACTITIONERS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 2002, Title 24 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows and by redesignating accordingly:

§ 2002. Definitions.

As used in this chapter:

(4) “Dry needling” means an intervention that meets the following criteria:

a. Uses a thin filiform needle to penetrate the skin and stimulate underlying muscular tissue, connective
tissues, and myofascial trigger points for the management of neuromusculoskeletal pain and movement
impairments.

b. Is based upon Western medical concepts.

c. Requires an occupational therapy examination and diagnosis.

~~(8)-(9)~~ a. “Occupational therapy services” includes any of the following:

1. The assessment, treatment, and education of or consultation with an individual, family, or other
persons.

2. Interventions directed toward developing, improving, or restoring daily living skills, work
readiness or work performance, play skills, or leisure capacities, or enhancing educational performance skills.

3. Providing for the development, improvement, or restoration of sensorimotor, oralmotor, perceptual
or neuromuscular functioning, or emotional, motivational, cognitive, or psychosocial components of
performance.

b. “Occupational therapy services” or “practice of occupational therapy” may require assessment of the
need for use of interventions such as the design, development, adaptation, application, or training in the use of
assistive technology devices; the design, fabrication, or application of rehabilitative technology such as selected
orthotic devices; training in the use of assistive technology, orthotic or prosthetic devices; the application of

23 thermal agent modalities, including paraffin, hot and cold packs, and fluido therapy, as an adjunct to, or in
24 preparation for, purposeful activity; the use of ergonomic principles; the adaptation of environments and processes
25 to enhance functional performance; dry needling; or the promotion of health and wellness.

26 c. [Repealed.]

27 ~~(9)-(10)~~ “Person” means a corporation, company, ~~association, or association~~, partnership, or an individual.

28 (14) “Trigger points” means hyperirritable spots in skeletal muscle that are associated with palpable nodules
29 in taut bands of muscle fibers. They can give rise to local or referred pain, autonomic phenomenon, and can cause
30 limitations in range of motion and muscle activation.

31 Section 2. Amend Chapter 20, Title 24 of the Delaware Code by making deletions as shown by strike through and
32 insertions as shown by underline as follows:

33 § 2022. Dry needling practice; referral.

34 (a) An occupational therapist or occupational therapy assistant may not perform a dry needling procedure on a
35 patient without first receiving a written physician referral specific to dry needling. A referral may be transmitted by digital
36 means.

37 (b) An occupational therapist or occupational therapy assistant may not advertise or in any other way hold
38 themselves out as an acupuncturist unless the occupational therapist or occupational therapy assistant is a licensed
39 acupuncturist.

40 (c) The Board may establish, by rule and regulation, training and practice standards for dry needling.

41 Section 3. This Act takes effect 6 months after its enactment into law.

SYNOPSIS

This Act expands the “practice of occupational therapy” to include dry needling, and sets forth requirements and limitations for licensed occupational therapists and occupational therapy assistants pertaining to the practice of dry needling. Dry needling may not be performed without a physician referral, and occupational therapists and occupational therapy assistants may not hold themselves out as acupuncturists unless they are licensed acupuncturists.